

Vikas Yadav v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 24 April 2023 · WRIT - C No. 11320 of 2023 · **Writ petition allowed; the non-speaking order is quashed and the objections are remitted to the Assessing Officer; costs of Rs. 20,000 to be adjusted against future bills of connection no. 1911/165190, recoverable from the erring officer**

HEADNOTE

Where a prior writ has directed the Executive Engineer to decide the consumer's objections by a speaking order, an order that records a hearing but states no amount and deals with none of the objections is illegal for want of reasons. The officer's description of himself as Appellate Authority does not cure that defect, nor does a Managing Director's affidavit that admits the misdescription, discloses a warning, and seeks dismissal without showing that the order was corrected. The Division Bench quashed the order, remitted the objections to the Assessing Officer, allowed the writ, and awarded costs of Rs. 20,000 to be adjusted against future bills of connection no. 1911/165190, with liberty to recover that sum from the erring officer. The Court did not decide the quantum, name a clause of the U.P. Electricity Supply Code, 2005, or separately set aside the recovery certificate dated 22 June 2020 or the attachment dated 20 July 2022.

FACTUAL SUMMARY

Vikas Yadav challenged a recovery certificate dated 22 June 2020 issued by respondent no. 2, and sought protection against disconnection of connection no. 1911/165190 and against withdrawal from his bank account attached on 20 July 2022. An earlier recovery certificate had been taken to Writ No. 34804 of 2019, which was disposed of with a direction that, if objections were filed, the Executive Engineer decide them by a speaking order, preferably within a month, any recovery to abide that decision.

In purported compliance, Magendra Kumar, describing himself as Appellate Authority, recorded a hearing on 6 November 2019 and stated that the provisional assessment would be amended and another final assessment issued. The order stated no amount and dealt with none of the objections. On 6 April 2023 the Court called for the Managing Director's personal affidavit and stayed coercive action on the recovery. The affidavit admitted the misdescription, disclosed a warning dated 21 April 2023, and prayed that the writ be dismissed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::unspecified

An order that records a hearing but states no amount and deals with no objection is illegal and is quashed

QUESTION

Can an order passed on the consumer's objections stand where it records a hearing, states no amount, deals with none of the objections, and the officer describes himself as Appellate Authority, contrary to a prior direction that the Executive Engineer pass a speaking order?

HOLDING

No. It was not disputed that Writ No. 34804 of 2019 had directed that the objections be decided by a speaking order. The order of the officer who described himself as Appellate Authority recorded a hearing on 6 November 2019 and stated that the provisional assessment would be amended and another final assessment issued, but it stated no amount and dealt with no objection. The Court held that this was in the teeth of the earlier direction and that, in the absence of reasons, the order was illegal. The Managing Director's affidavit admitted the error in the description, and the annexed inquiry report showed a warning dated 21 April 2023, but the affidavit did not disclose any step taken to correct the error and prayed that the writ be dismissed. The Court quashed the order and remitted the matter to the Assessing Officer to decide the objections. The petition was allowed with costs of Rs. 20,000, to be adjusted against future bills of connection no. 1911/165190, with liberty to the respondents to recover that sum from the erring officer.

¶ order of 6.4.2023; order of 24.4.2023

QUALIFIER

The Court did not determine the sum payable or decide the objections. The 2019 direction, as quoted, named the Executive Engineer; the operative remission is to the Assessing Officer. Costs are a credit against future bills of the stated connection, recoverable by the respondents from the erring officer.

FLAG Unnumbered five-page order-sheet: interim order of 6.4.2023 and final order of 24.4.2023, both by this coram. No clause number is cited. The 6.4.2023 order says the officer seemed to have no idea of the U.P. Electricity Supply Code, 2005. The provisional-assessment language is not pinned to Clause 6.8 or Clause 8.1, and Clauses 6.4, 6.4(c) and 6.45 are not in the text. The 24.4.2023 order remits 'in terms of the direction dated 06.04.2023 in the previous writ petition.' The previous writ is Writ No. 34804 of 2019; its speaking-order direction is quoted in the 6.4.2023 order of this writ. The 6.4.2023 order is not an order in the 2019 writ, and the 2019 disposal date is not stated. The officer is named Magendra Kumar. Respondent no. 2 and the Discom are not named.

PRINCIPLE TAGS

assessment-must-engage-objections-with-reasons

The order recorded a hearing on 6 November 2019 but stated no amount and dealt with none of the objections. The Court held that the absence of reasons rendered it illegal. Lead authorities: *Vikas Yadav v. State of U.P. and Another*. ¶ order of 24.4.2023

assessment-order-quashed-and-remitted-for-hearing

The non-speaking order was quashed and the objections were remitted to the Assessing Officer to be decided in accordance with the earlier speaking-order direction. Lead authorities: *Vikas Yadav v. State of U.P. and Another*. ¶ order of 24.4.2023

officer-accountability-for-defying-repeated-judicial-directions

The order was in the teeth of the 2019 direction to decide the objections by a speaking order. The Court placed the matter before the Managing Director. His affidavit admitted the 'Appellate Authority' misdescription and a warning dated 21 April 2023, but did not show that the order had been corrected, and sought dismissal. Lead authorities: *Vikas Yadav v. State of U.P. and Another*.

¶ order of 6.4.2023; order of 24.4.2023

costs-and-officer-accountability-for-procedural-harassment

For the harassment caused by the illegal order, the writ was allowed with costs of Rs. 20,000, to be adjusted against future bills of connection no. 1911/165190, with liberty to recover that sum from the erring officer. ¶ order of 24.4.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ASSESSMENT, AND THE MERITS OF THE PETITIONER'S OBJECTIONS

Remitted to the Assessing Officer. The impugned order stated no amount, and the Court determined none.

¶ order of 24.4.2023

NOT DECIDED — WHICH PROVISION OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 GOVERNED THE ASSESSMENT

The Court said the officer seemed to have no idea of the Code. It cited no clause and did not characterise the demand as unauthorised use or theft. ¶ order of 6.4.2023

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 22.06.2020 IS SET ASIDE, WHETHER THE ATTACHMENT DATED 20.07.2022 IS LIFTED, AND WHETHER DISCONNECTION OF CONNECTION NO. 1911/165190 REMAINS RESTRAINED

Those were the prayers. The operative order quashes the non-speaking order, remits the objections, and awards costs. It does not separately set aside the certificate or the attachment, or continue the stay of coercive action made on 06.04.2023. ¶ order of 24.4.2023

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Vikas Yadav v. State of U.P. and Another</i> Writ No. 34804 of 2019 High Court of Judicature at Allahabad	If objections are filed, the Executive Engineer shall consider and decide them by a speaking order, most expeditiously, preferably within a month; any recovery shall abide that decision.		Court	Applied

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.